Fill in this information to identify the case:

Debtor 1 NEMF Logistics, LLC

Debtor 2 (Spouse, if filing) _____

United States Bankruptcy Court for the: United States Bankruptcy Court - District of New Jersey

Case number 19-12821

RECEIVED
6/18/2019 1:16:56 PM (Eastern Time)
US BANKRUPTCY COURT-DRC
Claim No. ECN-469

Official Form 410

Proof of Claim

04/16

Read the instructions before filling out this form. This form is for making a claim for payment in a bankruptcy case. Do not use this form to make a request for payment of an administrative expense other than a claim arising under section 503(b)(9). Make such a request according to 11 U.S.C. § 503.

Filers must leave out or redact information that is entitled to privacy on this form or on any attached documents. Attach redacted copies of any documents that support the claim, such as promissory notes, purchase orders, invoices, itemized statements of running accounts, contracts, judgments, mortgages, and security agreements. **Do not send original documents;** they may be destroyed after scanning. If the documents are not available, explain in an attachment.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Fill in all the information about the claim as of the date the case was filed. That date is on the notice of bankruptcy (Form 309) **that you received.**

Part 1: Identify the Claim

1. **Who is the current creditor?**

   Saia Motor Freight Line LLC
   Name of the current creditor (the person or entity to be paid for this claim)

   Other names the creditor used with the debtor SAIA LTL Freight

2. **Has this claim been acquired from someone else?**

   ☑ No
   ☐ Yes. From whom? _____

3. **Where should notices and payments to the creditor be sent?**

   Federal Rule of Bankruptcy Procedure (FRBP) 2002(g)

Where should notices to the creditor be sent?	**Where should payments to the creditor be sent?** (if different)
M. Kevin McCarrell Fox Rothschild LLP 2 West Washington Street, Suite 1100 Greenville SC 29601 United States 864-751-7652 kmccarrell@foxrothschild.com	SAIA Claims Department PO Box A Station 1 Houma LA 70363 800-950-7242 ext. 2536 bpennison@sai.com

   Uniform claim identifier for electronic payments in chapter 13 (if you use one):

   _

4. **Does this claim amend one already filed?**

   ☑ No
   ☐ Yes. Claim number on court claims registry (if known) _____ Filed on _____ MM / DD / YYYY

5. **Do you know if anyone else has filed a proof of claim for this claim?**

   ☑ No
   ☐ Yes. Who made the earlier filing? _____

Part 2: Give Information About the Claim as of the Date the Case Was Filed

6. **Do you have any number you use to identify the debtor?**
☑ No
☐ Yes. Last 4 digits of the debtor's account or any number you use to identify the debtor: _____

7. **How much is the claim?** $ $74,732.64 . **Does this amount include interest or other charges?**
☑ No
☐ Yes. Attach statement itemizing interest, fees, expenses, or other charges required by Bankruptcy Rule 3001(c)(2)(A).

8. **What is the basis of the claim?**
Examples: Goods sold, money loaned, lease, services performed, personal injury or wrongful death, or credit card.
Attach redacted copies of any documents supporting the claim required by Bankruptcy Rule 3001(c).
Limit disclosing information that is entitled to privacy, such as health care information.
Interline Freight Charges

9. **Is all or part of the claim secured?**
☑ No
☐ Yes. The claim is secured by a lien on property.

Nature of property:
☐ Real estate. If the claim is secured by the debtor's principal residence, file a *Mortgage Proof of Claim Attachment* (Official Form 410-A) with this *Proof of Claim.*
☐ Motor vehicle
☐ Other. Describe: _____

Basis for perfection: _____
Attach redacted copies of documents, if any, that show evidence of perfection of a security interest (for example, a mortgage, lien, certificate of title, financing statement, or other document that shows the lien has been filed or recorded.)

Value of property: $_____
Amount of the claim that is secured: $_____
Amount of the claim that is unsecured: $_____ (The sum of the secured and unsecured amounts should match the amount in line 7.)

Amount necessary to cure any default as of the date of the petition: $_____

Annual Interest Rate (when case was filed)_____%
☐ Fixed
☐ Variable

10. **Is this claim based on a lease?**
☑ No
☐ Yes. **Amount necessary to cure any default as of the date of the petition.** $_____

11. **Is this claim subject to a right of setoff?**
☐ No
☑ Yes. Identify the property: Offsetting Interline Freight Charges of $39,343.35

12. **Is all or part of the claim entitled to: (i) priority under 11 U.S.C. § 507(a), or (ii) administrative expense under 11 U.S.C. § 503(b)(9)?**

A claim may be partly priority and partly nonpriority. For example, in some categories, the law limits the amount entitled to priority.

☑ No

☐ Yes. *Check all that apply:*

	Amount entitled to priority
☐ Domestic support obligations (including alimony and child support) under 11 U.S.C. § 507(a)(1)(A) or (a)(1)(B).	$_____
☐ Up to $2,850* of deposits toward purchase, lease, or rental of property or services for personal, family, or household use. 11 U.S.C. § 507(a)(7).	$_____
☐ Wages, salaries, or commissions (up to $12,850*) earned within 180 days before the bankruptcy petition is filed or the debtor's business ends, whichever is earlier. 11 U.S.C. § 507(a)(4).	$_____
☐ Taxes or penalties owed to governmental units. 11 U.S.C. § 507(a)(8).	$_____
☐ Contributions to an employee benefit plan. 11 U.S.C. § 507(a)(5).	$_____
☐ Other. Specify subsection of 11 U.S.C. § 507(a)(____) that applies.	$_____
☐ Value of goods received by the debtor within 20 days before the date of commencement of the case. 11 U.S.C. § 503(b)(9).	$_____

* Amounts are subject to adjustment on 04/01/19 and every 3 years after that for cases begun on or after the date of adjustment.

Part 3: Sign Below

The person completing this proof of claim must sign and date it. FRBP 9011(b).

If you file this claim electronically, FRBP 5005(a)(2) authorizes courts to establish local rules specifying what a signature is.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Check the appropriate box:

☑ I am the creditor.
☐ I am the creditor's attorney or authorized agent.
☐ I am the trustee, or the debtor, or their authorized agent. Bankruptcy Rule 3004.
☐ I am a guarantor, surety, endorser, or other codebtor. Bankruptcy Rule 3005.

I understand that an authorized signature on this *Proof of Claim* serves as an acknowledgment that when calculating the amount of the claim, the creditor gave the debtor credit for any payments received toward the debt.

I have examined the information in this *Proof of Claim* and have a reasonable belief that the information is true and correct.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on date 6/18/2019
MM / DD / YYYY

/s/ Sarmona B. Miller
Signature

Print the name of the person who is completing and signing this claim:

Sarmona B. Miller
Director Revenue Mangement
PO Box A, Station 1
Houma LA 70363
United States
800-950-7242
smiller@saia.com

INTERLINE AGREEMENT
Between

Saia LTL Freight
P O Box A, Station 1
104 Woodlawn Ranch Road
Houma, LA 70363

-And-

NEW ENGLAND MOTOR FREIGHT, INC.
1-71 North Avenue East
Elizabeth, NJ 07201

1. PRICING AGREEMENT

A. If either carrier receives a series of shipments from the other that are costly and unprofitable, either carrier would have the right to communicate to the other in writing, their need to adjust the price of the account. The carrier adjusting the price will be given 30 days to make the necessary revisions.

Unless requested, no copies of tariff publications will be sent to carrier for new discounts.

B. If, due to extenuating circumstances, unrated freight bills are received by carrier at interchange, the applicable published discounts and special charges are to be honored by the receiving carrier, even though they are not shown on the freight bill.

C. Saia LTL Freight and New England Motor Freight agree not to divulge and proprietary information regarding accounts, including company locations, pricing, handling or other information to any other partner and also agree not to solicit this business directly or through any other partnership at any time during the relationship and for a period of one year after the relationship terminates.

2. BASIS FOR RATES

A. When the shipment is prepaid, the carrier originating the shipments tariff will apply. When the shipment is collect, if the destination carrier has provisions covering that move, they will apply, but if there is not a specific page applicable the charges will be brought forward using the origin carrier's tariff.

B. On collect shipments, the destination Carrier's rates and accessorial charges will apply when consignee has pricing program with at the destination Carrier. When no pricing program exists for the consignee, the destination Carrier will accept rates and charges on originating Carrier's bill.

B. Cubic Capacity Rule will take precedence, and be honored, on all shipments where it is deemed necessary with the exception of customers that have "FAK" class pricing programs, or contract customers with no cubic capacity provisions.

AG

3. INTERLINE SETTLEMENT

A. Settlement of interline monies will be exchanged on a weekly basis. Billing will be done as follows:

Billing Paper Invoices Pro by Pro _____
EDI _____

Settlement Paper Check _____
EDI (Our preferred method is EDI) _____

All statements are to be paid or declined within 21 days of statement date. Billing and payment will be sent to Saia LTL Freight at P O Box A, Station 1, Houma, LA 70363. Billing and payment will be sent to NEMF at P O 6031 Elizabeth, NJ 07201

B. Balance dues and refund billings of $10.00 or less will not be processed and should be automatically written off by carrier. Balance dues and refund billings must be received within six (6) months of original settlement date.

4. WEIGHING AND RESEARCH (W&R)

The carrier not performing the re-weigh or re-classification will honor the changes if notified within 3 working days of re-weigh or re-classification. If the carrier responsible for collecting payment has already received payment, the change will be rejected, regardless of when received. If both carriers perform a re-weigh or re-classification, the origin carrier's findings will take precedence. No change will be honored when the total freight bill revenue is adjusted less than $40.00.

Notification of changes should be sent to the following:

Saia LTL Freight — Attention: W & R Department
At: (fax) 985-857-2396

NEMF, Inc. — Attention: W & R Department
At: (fax) 908-629-0861

5. OVERCHARGE CLAIMS

Based upon the decision of the carrier paying the overcharge claim to the customer, all transmittals which are accompanied by a signed delivery receipt showing proof of transfer, and a copy of the claim, will be paid upon receipt without further review by the receiving carrier. Overcharge claim rules are governed by the NMFC 100.

Claims will be mailed to:

Saia LTL Freight
Attn: Overcharge Claims
P O Box A, Station 1
Houma, LA 70363

Attn: _____

AB

6. CHANGES IN TERMS (COLLECT OR PREPAID)

A. Prior to Delivery

1. Change in freight charge status from collect to prepaid will be accomplished by the issuance of a corrected bill of lading by the shipper, or by written authorization of a person from the shipper. Destination carrier must contact origin carrier to receive proper authorization from shipper.

2. Change in freight charge status from prepaid to collect will be accomplished by the issuance of corrected bill of lading by the shipper, or by written authorization of a person from the shipper. A corrected copy must be transferred or faxed if the freight has already been interchanged.

3. A corrected bill of lading to change the original bill of lading from prepaid to collect will not be accepted if section 7 (non-recourse clause) of the corrected bill of lading has been signed by the Shipper.

B. After Delivery

1. A change in freight charge from prepaid to collect "can not" be made unless it was a billing error by the partner carrier. (No corrected bills of lading will be accepted changing from prepaid to collect.) Interline settlement will be made upon receipt of correction. If the delivering carrier is unable to collect from the consignee within 90 days of correction, terms will revert back to original status.
2. A change in freight charge from collect to prepaid can be accomplished by the issuance of a corrected bill of lading by the shipper or by written authorization of a person with the shipper.

C. No change will be made in the terms of the original bill of lading after the customer has paid freight charges.

D. No change will be accepted after six months from interchange date.

7. CLAIMS/OS&D:

A. All Cargo claims shall be handled in accordance to the rules of the National Motor Freight Classification, Sala 170 D Rules Tariff, and NEMF 105 M Rules Tariff.

B. All OS&D discrepancies must be recorded on an exception report or manifest and faxed back to the origin carrier within 24 hours of breaking the inbound trailer. Fax transmittal must be held for future claims purposes to support liability.

C. See Appendix A for Restricted Commodities. Any and all costs for fines and damages Sala incurs in returning this restricted freight will be billed back to the immediate originating party.

D. See the enclosed section on "Claim Handling Procedures" for any details on the handling of claims.

AB

8. INSURANCE

Both parties agree to carry General Liability insurance of at least $1,000,000.00, Cargo Coverage of $500,000.00 and trailer interchange coverage of $20,000.00. Certificates of insurance coverage shall be provided by both parties on request. If any policy of insurance is canceled or changed, written notice shall be given at least 25 days in advance of the effective date of any such cancellation or change.

9. TRAILER USAGE

Carrier hereby acknowledges that it has inspected and accepts a serviceable trailer in good repairs, mechanical condition and running order.

Carrier agrees that it will use the trailer exclusively to pick up, or deliver Saia goods commencing on the date hereof and ending when the trailer is surrendered to Saia at the location from which received. Carrier agrees there will not be extended use of this vehicle (beyond 7 days), and the location is which it was tendered, unless specific arrangements have been made with a duly authorized representative of Saia agrees to a fair and reasonable per day demurrage if either incident should occur.

Carrier agrees to return trailer uncontaminated and in as good as condition as when received less ordinary wear and tear. In the event of loss, theft or irreparable damage to trailer, Carrier agrees to pay Saia the greater of its bookvalue or replacement cost. Carrier agrees to replace or repair or bear the expense of replacing or repairing all lost parts or damage to the trailer, including, but not limited to flat tires, occurring during the time that the trailer is in the Carrier's possession or under its control. Where tire has been abused, Carrier agrees to replace damaged casing with casings in as good condition as the average of those then on the trailer.

Any unforeseen liability or injury occurring as a result of negligence by the partner, or due to damages not reported at the time of inspection, or due to damage or structural deficiency occurring while carrier is in the possession of the trailer, will be the sole responsibility of the Carrier.

10. GOVERNMENT BILLING

In order to expedite the collections of money due on freight that moves on a Government Bill of Lading, the GBL will stay in the possession of the origin carrier. The freight will always move on a prepaid basis and be billed by the origin carrier rather than tendering it along with the shipment. The delivering carrier will bill the origin carrier for their split.

11. ALTERATION

It is mutually agreed that there shall be no change or alteration in this agreement without the consent, in writing of both parties and that this agreement shall continue in force without the renewal until terminated by either party, said termination to be upon thirty (30) days written notice.

12. RESTRICTED COMMODITIES

The following will not be transported by carrier:

1. All shipments tendered to carrier with improper, inadequate, or Insufficient packaging.
2. All shipments containing articles which because of their bulk, length Exceeding 28 feet, width, or height cannot, in carrier's judgement, be safely stowed within a trailer or container.
3. All shipments which contain articles liable to impregnate or otherwise damage equipment or other freight.
4. All shipments which contain, in whole or in part, articles prohibited by law.

5. All shipments which contain, in carrier's judgement, items of unusual or extraordinary value.
6. Automobiles.
7. Bullion.
8. Carbon Black.
9. Flora and fauna.
10. Furs.
11. Hides, green or wet.
12. Jewelry, watches, etc.
13. Money or notes.
14. Platinum, gold, silver, and other precious metals.
15. Precious stones, cut or uncut.
16. Securities, stamps, stock certificates, letters, and other valuable papers.
17. Statues, paintings and other works of art.
18. Hazardous Waste.
19. PCB's (Polychlorinated Byphenyls).
20. Highway route Controlled Radioactive.
21. Explosive Division 1.1, 1.2, and 1.3
22. Slabs of Crated Marble

In the event the carrier unknowingly accepts cargo named in Appendix A, items 3 through 23, of this document due to invalid description of the restricted commodity or commodities, carrier shall hold the shipper(s) solely responsible and liable for any penalties and/or damages resulting from transportation of the restricted cargo.

These limitations and restrictions or any other applicable regulations are found in ICC Sala 170 rules tariff.

Unless otherwise agreed to in writing in advance by both parties, jointline shipments will be subject to the contract terms as indicated in the carriers bill of lading or the National Motor Freight Classification 100 item 365 "Uniform Bill of Lading" in effect on the date that the shipment was tendered to the carrier.

Failure to Utilize the carrier's bill of lading or the National Motor Freight Classification bill of lading in item 365 does not constitute waiver of this provision.

CLAIM HANDLING PROCEDURES

Agreement to transfer freight without joint check is intended to provide resolution to any problems that may arise from freight interchanged between the two carriers involved and shall be a basis for settlement of any claims filed for loss and/or damage. Any deviation from this agreement must have the joint written consent of both parties.

1. LINEHAUL SEAL VERIFICATION & RECORDING OF ALL INBOUND DISCREPANCIES.

   A. All trailers are to be sealed by the loading carrier before movement and the seal number is to be recorded on the loading manifest and the computer generated manifest.

   B. All freight bills and a copy of the loading manifest are to move with the trailer to the receiving carrier's service center/terminal.

   C. When the trailer arrives at the receiving carrier's service center/terminal the seal is to be checked to verify it matches the number recorded on the front of the loading manifest and is intact. Documentation showing seal intact should be recorded on the front of the receiving manifest. Any seal discrepancy must be recorded on an exception report and faxed back to the origin carrier within 24 hours after trailer is worked. The fax transmittal must be saved for future claims purposes.

D All freight bills received when there is no joint check of shipments must be signed with the following notation: "SLC" meaning transferred without joint check.

E All OS&D discrepancies must be recorded on an unloading manifest according to the guidelines noted below. The unloading manifest must indicate an unloading date. Any noted exception must be reported to the originating carrier via fax within 24 hours of unloading (excluding weekends and/or holidays) These fax transmittals must be submitted with all claim files to prove proper reporting. Originating carrier contact and FAX number is: _____.

F If the interchanged trailer checks clear, the unloading manifest will be marked "none" to indicate that there were no discrepancies when unloaded, and handled in accordance with section above.

G. In the event that the interchange is a live unload, the originating carrier's delivery receipt must be signed and dated noting all exceptions corresponding to the following guidelines.

2. OVERAGES, SHORTAGES, DAMAGES, REFUSED SHIPMENTS

All OS&D discrepancies must be recorded on an exception report or manifest and faxed back to the origin carrier within 24 hours of breaking an inbound trailer. Exception reporting will be done in the same manner as seal discrepancy reporting in Section 1C and 1 E.

A. Overages
   1. Any and all overages received whether they are over without a freight bill or over in excess of billing are to be recorded on the receiving carrier's exception report and faxed within 24 hours as in section 1E above.

   2. Overages determined to have been received in error are to be returned to the origin carrier deadhead immediately.

B. Shortages
   1. Partial shortages found when unloading are to be properly recorded on the receiving carrier's exception report with a descriptive itemization of the merchandise short.

   2. In the interest of providing service, partial short shipment will be moved to the receiving carrier's destination facility for delivery.

   3. Complete shortages found when unloading are to be properly recorded on the receiving carrier's exception report. The freight bill will be noted as "NO FREIGHT" and returned to the origin carrier.
   4. If originating carrier's bill is for pieces, the Interline carrier is liable for pieces regardless if pallet count is received at time of interchange. Interline carrier is only liable for pallets if bill is for pallets, interchange records indicates pallets and final proof of delivery indicates the number pallets and if they were in fact intact. Unless all 3 criteria are met, delivering carrier is liable for pieces.

C. Damages
   1. Any damages found to a shipment when unloading must be properly recorded on the receiving carrier's exception report with a descriptive notation of the damage. Vague exceptions such as "possible damage", "bad order", etc. will not be accepted and deemed invalid.

   2. Shipments should be recouped and offered for delivery obtaining a complete and descriptive notation of the extent of damage on the final delivery receipt.

   3. Damaged and refused freight will be reported to the originating carrier for disposition within 24 hours after the refusal.

RB

4. Concealed damage inspections will be waived on merchandise at $2000.00 or less. Inspections on merchandise having a value greater than $2000.00 should be inspected by an independent inspection agency or destination carrier.

5. Damages on a shrink-wrapped pallet must indicate "concealed, found inside shrink wrapped pallet intact after breaking down", in order to relieve carrier liability.

D. Restricted Commodities
See Appendix A for Restricted Commodities. Any and all costs for fines and damages Saia incurs in returning freight, will be billed back to the immediate originating party.

E. Refused Shipments & On-hand Requirements

1. Shipments refused or non-deliverable for any reason other than damage are considered on-hand and must be reasonably secured after an on-hand notice has been sent to all parties involved after no response within 48 hours of request for Return authorization.

2. Whenever a shipment is refused, carrier will notify the originating shipper within 24 hours with a request made for disposition. Disposition for return or reconsignment should be followed with written confirmation by the shipper authorizing billing for charges, etc.

3. APPORTIONMENT OF CLAIMS FOR CARGO AND/OR DAMAGE

Apportionment of claims for cargo loss and/or damage will be determined by the documentation of discrepancies recorded on the receiving carrier's exception report at the point of interchange.

1. Exceptions noted at the time of interchange must be reported as outlined in Section 2 and will become the responsibility of the receiving carrier.

2. The origin carrier will accept liability for claims when
Proper documentation described in Section 2 indicates the discrepancy occurred before interchange.

3. Vague, general exceptions such as "possible damage", "bad order", etc. will not be accepted. If any apparent basis for an exception notation exists upon unloading and/or delivery to the consignee, and exact description of the extent of damage or loss must be made.

4. Liability for concealed damage will be shared on a pro-rated basis between Sala LTL Freight and NEMF.

4. TRANSMITTALS, SETTLEMENT, AND LITIGATION OF CLAIMS

A. Transmittals must include:

1. Claimant's presentation and invoice
2. Delivery documentation
3. Loading/Unloading Manifest
4. Carriers Exception report
5. Any internal record of checking and handling
6. If damage – inspection and reply to mitigation on claims over $2000.00.

B. Claims must be paid, declined with adequate documentation, or reported within 30 days of receipt. After 30 days with no valid closure, Saia will send a written tracer. After 60 days, Saia will send a written final notice. After 90 days, Saia will pursue other legal means of collections, which includes deductions from freight charges.

C. Claims must be transmitted between carriers within 9 months from the receipt of the original claim submitted with the originating carrier. Any claim received by the end carrier outside of this time frame will release the end carrier of any claim liability.

D. Any expense for litigation will be resolved as outlined in the National Motor Freight Classification.

E. Any item not covered in this agreement shall be referred to and resolved in accordance with the National Motor Freight Classification.

F. All Cargo Claims shall be handled in accordance to the rules of the National Motor Freight Classification, Saia 170 D Rules Tariff, and NEMF 105 M Rules Tariff.

G. Claims in the amount of $100.00 or less will not be transmitted between carriers.

H. Saia LTL Freight's claim liability will be held based on the National Motor Freight Classification and Saia 170 D rules tariff regardless of original bill of lading or contract.

SAIA LTL FREIGHT

SIGNATURE – Sarmona B. Miller

Sarmona B. Miller
PRINTED SIGNATURE

Traffic/Credit Manager
TITLE

December 31, 2012
DATE

NEW ENGLAND MOTOR FREIGHT, INC.

SIGNATURE- Richard Bowden

Richard Bowden
PRINTED SIGNATURE

Vice President Yield Management
TITLE

12/31/12
DATE

Addendum to Interline Contract
Between

Saia LTL Freight

-and-

New England Motor Freight

PRORATING PROVISIONS

A. Revenue splits will be determined on RMB D-83 series division sheets. In the event of insufficient revenue for each carrier to receive the D-83 minimum division, revenue will be equally divided.

B. For three line haul prorating, a factor will be obtained from each point of interchange, and revenue divided according to the percentage obtained from these factors. In the event of insufficient revenue for each carrier to receive the D-83 minimum division, revenue will be equally divided.

C. For freight destined to Saia LTL Freight going to points shown as direct freight will be divided as two line haul. For freight given to Saia LTL Freight destined to points not shown as direct will be divided 3 ways. A complete points file listing is located on www.saia.com.

D. In the case of returns, reconsignments, etc., the invoicing carrier will bill at current CZAR rates less a 65% discount subject to $59.50 min. charge on direct and $91.50 min. charge on non-direct, subject to the incremental increases of the D-83.

E. The responsibility for reconsignments after tender, including authorization for the reconsignment and for the collection of charges for such service will be the responsibility of the carrier with possession of the freight.

F. Accessorial charges will accrue to the carrier performing the additional services.

Saia LTL Freight

SIGNATURE - Sarmona B. Miller

Traffic/Credit Manager
TITLE

December 31, 2012
DATE

NEW ENGLAND MOTOR FREIGHT, INC

SIGNATURE-Richard Bowden

Vice President Yield Management
TITLE

12/31/12
DATE

Exhibit 2

Exhibit 3